

2018 M L D 1618

[Lahore]

Before Shams Mehmood Mirza and Jawad Hassan, JJ

Malik ZAHOOR UL HASSAN---Petitioner

Versus

APPELLATE TRIBUNAL, MULTAN and 2 others---Respondents

Writ Petitions Nos. 222723 and 222722 of 2018, decided on 12th July, 2018.

Elections Act (XXXIII of 2017)---

---Ss. 62 & 63---Constitution of Pakistan, Art. 62(1)(f)---Qualification for membership of Parliament (Majlis-e-Shoora)---Rejection of nomination papers---Scope---Nomination papers of candidate in question were rejected by Returning Officer on the basis that her nomination papers were rejected in previous Bye-elections---Election Tribunal had set aside the order of the Returning Officer---Validity---Appeal against the rejection of nomination papers of the candidate in previous Bye-elections was pending adjudication before the Supreme Court---No declaration as envisaged in Art.62(1)(f) of the Constitution had come on surface---Person could not be prevented from his/ her Fundamental Right to contest the elections till the final outcome of his/her qualification---Constitutional petitions were dismissed.

Sami Ullah Baloch and others v. Abdul Karim Nousherwani and others PLD 2018 SC 405 rel.

Muhammad Ali Siddiqui and Muhammad Saqib Jillani for Petitioners.

Tahir Munir Malik for Respondent No.3.

Ch. Naeem Sarwar for Election Commission of Pakistan.

JUDGMENT

JAWAD HASSAN, J.---Through this single order we intend to decide the instant petition as well as W.P. No.222722/2018 titled "Muhammad Ishfaq v. Appellate Tribunal Multan and 2 others" as both the petitions are outcome of the impugned judgment dated 25.06.2018 passed by the learned Election Appellate Tribunal (the "Tribunal") whereby the Election Appeal filed by the Respondent No.3 was accepted and the order dated 19.06.2018 passed by the Returning Officer/the Respondent No.2 rejecting the nomination papers of the Respondent No.3, was set aside. By virtue of these petitions, filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution"), the Petitioners have sought setting aside of the above referred impugned judgment.

2. The learned counsel for the Petitioners inter alia submitted that the impugned judgment is illegal and against the law and facts; that the learned Tribunal has not taken into consideration the fact the Petitioners were not made party in the election Appeal; that the fact of permanent disqualification has not been properly appreciated by the learned Tribunal; that although the matter is pending adjudication before the Hon'ble Supreme Court of Pakistan but there is no suspension order of the disqualification order passed by this Court, as such the impugned order is not sustainable in the eye of law.

3. On the contrary, learned counsel for the Respondent No.3 vehemently controverted the arguments advanced by the learned counsel for the Petitioners and prayed for dismissal of the petition on the ground that the decision of the learned Tribunal is strictly in accordance with law and therefore, cannot be interfered with by this Court. Learned counsel for the Election Commission of Pakistan also assisted the Court in the matter.

4. We have heard the arguments of the learned counsel for the parties and have perused the record.

5. Although, admittedly the Respondent No.3 previously submitted her nomination papers for contesting Bye-elections of Provincial Assembly which was accepted by the Returning Officer vide order dated 27.12.2014. The said order was assailed by one Khawaja Muhammad Dawood Sulemani through Election Appeal which was allowed vide order dated 01.01.2015 and the nomination papers of the Respondents No.3 were rejected. Feeling aggrieved thereby the Respondent No.3 challenged the said order in W.P. No.136/2015 which was dismissed on 12.08.2016 and she filed Appeal against the said dismissal order before the Hon'ble Supreme Court of Pakistan which is still pending adjudication. Although the Appeal of the Respondent No.3 regarding her qualification or otherwise is pending before the Hon'ble Supreme Court of Pakistan yet no declaration as envisaged in Article 62(1)(f) of the Constitution has come on surface. Consequently, a person cannot be prevented from his/her fundamental right to contest the elections till the final outcome of his/her disqualification. Admittedly, as there is no adverse order against the Respondent No.3 regarding her qualification by the Hon'ble Supreme Court of Pakistan as yet, therefore, we agree with the findings of the learned Tribunal who in paragraph No.8 of the impugned judgment observed that while interpreting Article 62(1)(f) of the Constitution the apex Court in case reported as Sami Ullah Baloch and others v. Abdul Karim Nousherwani and others (PLD 2018 Supreme Court 405) held that disqualification under Article 63 (1)(f) of the Constitution is of permanent character but in para-37 of the said judgment, all the cases were directed to be fixed before the appropriate Benches for decision in accordance with law laid down in the said judgment keeping in view the facts and circumstances of each case. The Appeal filed by the Appellant before the Hon'ble Supreme Court of Pakistan is still pending and till date there is no verdict on the said issue, therefore, the rejection of nomination papers of the Respondent No.3 was thus highly unwarranted.

6. We, therefore, are in concurrence with the findings of the learned Tribunal which rightly accepted the Appeal of the Respondent No.3 and do not see any illegality or perversity in the impugned judgment which has been passed strictly in consonance with the spirit of law, as such does not warrant any interference by us. Consequently, both the petitions in hand, being devoid of any merit, are hereby dismissed.

SA/Z-19/L

Petitions dismissed.